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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

ERIC DOMINGUEZ

**BRONX COUNTY
CLERK'S OFFICE**

MAR 18 2016

**STIPULATION OF
DISCONTINUANCE
WITH PREJUDICE**

Plaintiff(s),

Index #: 25445-2014

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER MAYKY SANTOS, POLICE OFFICER JOHN DOE
and POLICE OFFICER JOHN ROE

NYC Law Dep't #:
2014-042659

Defendant(s).

NYC Comptroller #:
2014PI026485

IT IS HEREBY STIPULATED AND AGREED, by and between the attorneys of record for all the parties to the above-entitled action, that whereas no party is an infant or an incompetent person for whom a committee has been appointed or conservatee and no person not a party has an interest in the subject matter of the action, the above entitled action

☒ is discontinued as to all parties, including all cross-claims and counterclaims, with prejudice and without costs or disbursements to any party.

[If this stipulation is to discontinue the entire action, including all cross-claims and counterclaims, X the box above and cross out the language in the following paragraph. If this stipulation discontinues as to only some of the defendants, X the box below, insert the names of all other defendants the action is being discontinued and cross out the language in the above paragraph.]

☐ is discontinued with prejudice as against only defendant(s) CITY OF NEW YORK, and

without costs or disbursements to either parties.

A copy of this stipulation shall be deemed an original for all purposes and may be filed with the Clerk of the Court without further notice to any party.

Dated: BRONX, NY
NOVEMBER 23, 2015

1) NEIL WOLLERSTEIN, ESQ.,
Attorney(s) for Plaintiff(s)
895 SHERIDAN AVENUE

BRONX, New York, 10451

Tel: (718) 588-1300

By:

Sign above/
print below

2)

Zachary W. Carter, Esq
Corporation Counsel
Attorney for Defendant(s)
CITY OF NEW YORK and

Gianna M. Famulari
for

New York,

Tel: ()

By:

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Zachary W. Carter
Corporation Counsel

THE CITY OF NEW YORK
LAW DEPARTMENT
TORT DIVISION
BRONX COUNTY OFFICE
198 EAST 161ST STREET, 3RD FLOOR
BRONX, NY 10451-3513

PHONE: (718) 503-5030
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Date: 3/14/2016

Bronx County Clerks' Office, Rm. 118
851 Grand Concourse
Bronx, New York 10451

Re: Eric Dominguez v. The City of New York, et al
Index No: 25445/2014
City File No. 2014-042659

Dear Sir/Madam:

The Corporation Counsel is exempt from any payment of fees, court costs, or certification costs relating to the filing or transfer of an action, and any fees for the issue of an index number, perfection of an appeal, request for judicial intervention, stipulation of discontinuance or any other court fee relating to the defense of an action against the municipality of New York.

Accordingly, please accept the above papers. Thank you for your attention to this matter.

Sincerely yours,

Tisha Johnson / amh

Tisha Johnson
Clerical Associate III

TJ/amh